

Shahid Raza vs The State Of Madhya Pradesh on 25 August, 2023

Author: Sunita Yadav

Bench: Sunita Yadav

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IN THE HIGH COURT OF MADHYA PRADESH
AT GWALIOR
BEFORE
HON'BLE SMT. JUSTICE SUNITA YADAV
ON THE 25th OF AUGUST, 2023
MISC. CRIMINAL CASE No. 36530 of 2023

BETWEEN: -
SHAHID RAZA S/O SHRI TAHIR KHAN, AGED ABOUT 27
YE A R S , OCCUPATION: LABORER R/O MOHALLA
BHARATGARH NEAR MASJID DATIA DISTRICT DATIA
(MADHYA PRADESH)

(BY SHRI FAISAL ALI SHAH - ADVOCATE)

AND
THE STATE OF MADHYA PRADESH THROUGH POLICE
STATION KOLARAS DISTRICT SHIVPURI (MADHYA
PRADESH)

(BY SHRI RAJEEV UPADHYAY - PUBLIC PROSECUTOR)

This application coming on for admission this day, the court is ordered as follows:

ORDER

This is the first application filed by the applicant under Section 439 of the Cr.P.C. for grant of bail relating to Crime No.409/2022 registered at Police Station Kolaras, District Shivpuri (M.P.) for the offence under Section 392 of the I.P.C. and Section 11/13 of MPDVPK Act.

Allegation against the present applicant is that he committed robbery and looted gold and silver ornaments, Rs.4000/- and mobile phones from the complainant and his wife.

Learned counsel for the applicant argued that the applicant is innocent and has been falsely implicated. The entire prosecution story is highly suspicious because applicant is under custody in some other case since November, 2022 and in the present case recovery has been done on 26.5.2023 and TIP was done on 2.6.2023 when he was already under custody. It is further argued that the applicant is arrayed an accused on the basis of memorandum of co-accused Sumit; however,

co-accused Sumit has not been identified in test identification parade. On account of this missing link, the story of prosecution is not reliable. It is further argued that the applicant is in custody since 26/05/2023. Charge-sheet has already been filed, therefore, there is no requirement of further custodial interrogation of the applicant. The applicant is permanent resident of District Datia (M.P.) and there is no possibility of his absconding or tempering with prosecution case. On these grounds, he prays for grant of bail to the applicant.

Per contra, learned counsel for the State vehemently opposed the bail application by citing the criminal history of same nature and, therefore, prayed for its rejection.

Heard learned counsel for the rival parties and perused the case diary available on record.

Considering the facts and circumstances of the case, but without expressing any opinion on merits of the case, this application is allowed and it is directed that the applicant be released on bail on furnishing a personal bond in the sum of Rs.1,00,000/- (Rupees One Lakh Only) with two solvent sureties each in the like amount to the satisfaction of the trial Court/committal Court.

This order will remain operative subject to compliance of the following conditions by the applicant:-

- 1) The applicant will comply with all the terms and conditions of the bond executed by him;
- 2) The applicant will cooperate in the investigation/trial, as the case may be;
- 3) The applicant will not indulge himself in extending inducement, threat or promise to any person acquainted with the facts of the case so as to dissuade him/her from disclosing such facts to the Court or to the Police Officer, as the case may be;
- 4) The applicant will not commit any other offence or will not repeat the offence in future. In case, if he/she is found involving in the offence of same nature, this bail order shall stand cancelled automatically without further reference to the Bench.
- 5) The applicant will not seek unnecessary adjournments during the trial; and 6) The applicant will not leave India without previous permission of the trial Court/Investigating Officer, as the case may be.
- 7) The applicant shall mark his presence before the SHO of the concerning police station in the first week of every month till conclusion of the trial.

Learned State counsel is directed to send an e-copy of this order to the Station House Officer of the concerned Police Station for information and necessary action.

E- copy of this order be sent to the trial Court concerned for compliance, if possible, by the office of this Court.

Certified copy as per rules.

(SUNITA YADAV) JUDGE Ahmad